

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO H.B. 2305
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-499.05, Arizona Revised Statutes, is amended
3 to read:

4 9-499.05. State preemption; rates for private towing carrier;
5 notice of parking violations; photographic
6 documentation; tow carrier identification;
7 release of motor vehicle; damages; violation;
8 classification; applicability; definition

9 ~~A. The governing body of an incorporated city or town may regulate~~
10 ~~the maximum rate and charge for towing, transporting or impounding a motor~~
11 ~~vehicle from private property without the permission of the owner or~~
12 ~~operator of the vehicle by any private towing carriers doing business~~
13 ~~within its boundaries. A private towing carrier is subject to the maximum~~
14 ~~rate and charge regulation prescribed by the city or town for all such~~
15 ~~towing, transporting or impounding services if the vehicle being towed or~~
16 ~~transported is towed from private property located within the boundaries~~
17 ~~of the city or town.~~

18 A. THE REGULATION OF TOWING RATES FOR MOTOR VEHICLES THAT ARE TOWED
19 FROM PRIVATE PROPERTY BY PRIVATE TOWING CARRIERS PURSUANT TO THIS SECTION
20 IS A MATTER OF STATEWIDE CONCERN. THE REGULATION OF TOWING RATES FOR
21 MOTOR VEHICLES THAT ARE TOWED BY PRIVATE TOWING CARRIERS PURSUANT TO THIS
22 SECTION IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY, CITY, TOWN OR
23 OTHER POLITICAL SUBDIVISION OF THIS STATE.

24 B. FOR A CITY OR TOWN THAT DOES NOT REGULATE THE RATE FOR PRIVATE
25 TOWING MOTOR VEHICLES FROM PRIVATE PROPERTY AS OF JANUARY 1, 2026, THE
26 RATE FOR TOWING, TRANSPORTING, IMPOUNDING OR STORING A MOTOR VEHICLE THAT
27 IS TOWED FROM PRIVATE PROPERTY SHALL BE THE RATE PUBLISHED IN THE
28 DEPARTMENT OF PUBLIC SAFETY TOW SERVICE AGREEMENT FOR THE LOCATION FROM
29 WHICH THE MOTOR VEHICLE WAS TOWED.

1 C. ON OR BEFORE ~~[JANUARY]~~ [JULY] 1, 2027, A CITY OR TOWN THAT HAS,
2 AS OF JANUARY 1, 2026, REGULATED THE RATE FOR PRIVATE TOWING ~~[OF]~~ MOTOR
3 VEHICLES FROM PRIVATE PROPERTY SHALL UPDATE THE RATES FOR PRIVATE TOWING
4 ~~[OF]~~ MOTOR VEHICLES FROM PRIVATE PROPERTY TO THE MARKET STANDARDS OR THE
5 RATES AND FEES PRESCRIBED BY THIS SECTION.

6 ~~B.~~ D. The owner or agent of the owner of the private property
7 shall be deemed to have given consent to unrestricted parking by the
8 general public in any parking area of the private property unless ~~such~~ THE
9 parking area is posted with signs as prescribed by this subsection ~~which~~
10 THAT are clearly visible and readable from any point within the parking
11 area and at each entrance. THIS SUBSECTION DOES NOT APPLY IF A MOTOR
12 VEHICLE IS TOWED FROM A SINGLE-FAMILY RESIDENCE AND THE OWNER OF THE
13 SINGLE-FAMILY RESIDENCE OR A TENANT AT THE SINGLE-FAMILY RESIDENCE IS THE
14 PARTY WHO REQUESTED THE TOW. ~~Such~~ THE signs ~~shall contain~~ MUST MEET, at a
15 minimum, ALL OF the following REQUIREMENTS:

- 16 ~~1. Restrictions on parking.~~
- 17 ~~2. Disposition of vehicles found in violation of the parking~~
- 18 ~~restrictions.~~
- 19 ~~3. Maximum cost to the violator, including storage fees and any~~
- 20 ~~other charges that could result from the disposition of a vehicle parked~~
- 21 ~~in violation of parking restrictions.~~
- 22 ~~4. Telephone number and address where the violator can locate the~~
- 23 ~~violator's vehicle.~~

24 1. BE POSTED IN A MANNER TO FACE AND BE CONSPICUOUSLY VISIBLE TO
25 THE DRIVER OF A MOTOR VEHICLE THAT ENTERS ~~[THE]~~ [A PRIVATE] PARKING
26 FACILITY AND BE POSTED ON THE LEFT OR RIGHT SIDE OF EACH DRIVEWAY OR CURB
27 CUT IN WHICH A MOTOR VEHICLE CAN ENTER THE FACILITY.

28 2. BE CONSTRUCTED USING WEATHER RESISTANT MATERIALS.

29 3. BE A MINIMUM OF NINE INCHES WIDE AND TWELVE INCHES TALL AND NOT
30 MORE THAN TWELVE INCHES WIDE AND EIGHTEEN INCHES TALL.

31 4. CONTAIN ALL OF THE FOLLOWING:

32 (a) THE FOLLOWING LANGUAGE: "UNAUTHORIZED VEHICLES WILL BE TOWED AT
33 THE MOTOR VEHICLE OWNER'S OR OPERATOR'S EXPENSE PURSUANT TO ARIZONA
34 REVISED STATUTES SECTION 9-499.05".

35 (b) A TELEPHONE NUMBER THAT IS MONITORED TWENTY-FOUR HOURS A DAY
36 THAT ENABLES THE MOTOR VEHICLE OWNER OR OPERATOR TO LOCATE THE TOWED MOTOR
37 VEHICLE.

38 (c) THE TOWING AND STORAGE RATE AND INFORMATION ON THE RELEASE OF
39 THE MOTOR VEHICLE AND THE RIGHTS OF THE OWNER OF THE MOTOR VEHICLE THROUGH
40 A WEBSITE LINK OR QR CODE.

41 5. BE PERMANENTLY MOUNTED ON A POLE, POST, PERMANENT WALL OR
42 PERMANENT BARRIER.

43 ~~E.~~ E. It is unlawful for a private towing carrier to tow or
44 transport a motor vehicle from private property without the permission of
45 the owner or operator of the motor vehicle unless ~~such~~ THE private towing
46 carrier receives a request from a law enforcement agency or the express
47 written permission from the owner or the agent of the owner of the
48 property that has complied with the requirements of subsection ~~B.~~ D OF

1 THIS SECTION. The owner or the owner's agent shall either sign each
2 towing order or authorize the tow by a written contract ~~which~~ THAT is
3 valid for a specific length of time. The private towing carrier may not
4 act as the agent of the owner.

5 ~~D. A person who violates subsection C is guilty of a class 2~~
6 ~~misdemeanor.~~

7 F. BEFORE MECHANICALLY CONNECTING A MOTOR VEHICLE TO A PRIVATE
8 TOWING CARRIER, THE PRIVATE TOWING CARRIER SHALL DOCUMENT, THROUGH THE USE
9 OF DATE-AND-TIME-STAMPED DIGITAL PHOTOGRAPHY OR DIGITAL VIDEO, THE NATURE
10 OF THE PRIVATE PARKING VIOLATION. THE PRIVATE TOWING CARRIER SHALL
11 PROVIDE ALL PHOTOGRAPHIC OR VIDEO IMAGES TO THE OWNER OF THE MOTOR VEHICLE
12 OR THE OWNER'S AGENT, IF REQUESTED. THE PHOTOGRAPHIC EVIDENCE SHALL
13 INCLUDE ALL OF THE FOLLOWING:

- 14 1. IMAGES OF THE MOTOR VEHICLE BEING TOWED.
- 15 2. IMAGES OF THE SIGNAGE REQUIRED PURSUANT TO SUBSECTION D OF THIS
- 16 SECTION, IF APPLICABLE.
- 17 3. IMAGES OF THE ENTIRE MOTOR VEHICLE TAKEN FROM ALL FOUR CORNERS
- 18 OF THE MOTOR VEHICLE.
- 19 4. IMAGES OF THE MOTOR VEHICLE'S LICENSE PLATE OR MOTOR VEHICLE
- 20 IDENTIFICATION NUMBER.

21 G. ANY PRIVATE TOWING CARRIER THAT TOWS A MOTOR VEHICLE FROM
22 PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE MOTOR VEHICLE'S OWNER OR
23 THE OWNER'S AGENT SHALL NOTIFY THE APPROPRIATE LAW ENFORCEMENT AGENCY
24 WITHIN ONE HOUR AFTER MECHANICALLY CONNECTING THE MOTOR VEHICLE TO A
25 PRIVATE TOWING CARRIER. THE PRIVATE TOWING CARRIER SHALL PROVIDE THE
26 APPROPRIATE LAW ENFORCEMENT AGENCY WITH ALL OF THE FOLLOWING INFORMATION:

- 27 1. THE NAME AND ADDRESS OF THE MOTOR VEHICLE'S OWNER, IF KNOWN.
- 28 2. THE MOTOR VEHICLE'S LICENSE PLATE NUMBER AND VEHICLE
- 29 IDENTIFICATION NUMBER AND A DESCRIPTION OF THE MOTOR VEHICLE.
- 30 3. THE REASON FOR THE TOW OF THE MOTOR VEHICLE.
- 31 4. THE STREET ADDRESS OF THE IMPOUND LOT WHERE THE MOTOR VEHICLE
- 32 WILL BE IMPOUNDED.
- 33 5. THE NAME AND ADDRESS OF THE PRIVATE TOWING CARRIER THAT WILL TOW
- 34 THE MOTOR VEHICLE AND THE NAME OF THE PERSON WHO WILL TOW THE MOTOR
- 35 VEHICLE ON BEHALF OF THE PRIVATE TOWING CARRIER.
- 36 6. A PHONE NUMBER THAT IS ANSWERED TWENTY-FOUR HOURS A DAY, SEVEN
- 37 DAYS A WEEK FOR THE PRIVATE TOWING CARRIER AND THE IMPOUND LOT WHERE THE
- 38 MOTOR VEHICLE WILL BE IMPOUNDED.

39 H. A PRIVATE TOWING CARRIER SHALL RELEASE AN IMPOUNDED MOTOR
40 VEHICLE TO THE OWNER OF RECORD OR THE OWNER'S AGENT WHO PAYS, OR MAKES
41 ARRANGEMENTS TO PAY, THE CHARGES PRESCRIBED PURSUANT TO SUBSECTION B OF
42 THIS SECTION IN A MANNER CONSISTENT WITH THE DEPARTMENT OF PUBLIC SAFETY
43 TOW SERVICE AGREEMENT AND WHO PROVES OWNERSHIP OF THE MOTOR VEHICLE BY
44 PROVIDING A GOVERNMENT-ISSUED PHOTO IDENTIFICATION AND ONE OF THE
45 FOLLOWING:

- 46 1. A VALID CERTIFICATE OF TITLE.
- 47 2. PROOF OF A CURRENT VEHICLE REGISTRATION THAT IS NOT A RESTRICTED
- 48 USE THREE-DAY PERMIT.

1 3. A REPOSSESSION AFFIDAVIT AND A HOLD HARMLESS LIABILITY RELEASE
2 FROM LEGAL CLAIMS.

3 4. AN INSURANCE COMPANY RELEASE PURSUANT TO SECTION 28-4847.

4 5. A CERTIFIED VEHICLE RECORD.

5 6. PROOF OF A BONA FIDE SECURITY INTEREST OR OTHER FINANCIAL
6 INTEREST IN THE MOTOR VEHICLE THAT EXISTS AT THE TIME OF THE MOTOR VEHICLE
7 TOW.

8 I. THE PRIVATE TOWING CARRIER SHALL PROVIDE THE MOTOR VEHICLE OWNER
9 WITH AN ITEMIZED RECEIPT FOR SERVICES AND, ON REQUEST, SHALL PROVIDE A
10 COPY OF THIS STATUTE TO THE MOTOR VEHICLE OWNER OR OWNER'S AGENT WHO
11 RECLAIMS THE MOTOR VEHICLE.

12 J. A PRIVATE TOWING CARRIER THAT CHARGES A TOWING FEE GREATER THAN
13 THE TOWING FEE THAT IS PRESCRIBED PURSUANT TO SUBSECTION B OF THIS SECTION
14 MAY BE ORDERED TO REIMBURSE THE MOTOR VEHICLE OWNER FOR ANY OVERCHARGES OR
15 UNAUTHORIZED CHARGES.

16 K. A PRIVATE TOWING CARRIER OR PRIVATE PARKING FACILITY OWNER THAT
17 INTENTIONALLY, KNOWINGLY OR RECKLESSLY VIOLATES THIS SECTION IS LIABLE TO
18 THE OWNER OF THE MOTOR VEHICLE THAT IS THE SUBJECT OF THE VIOLATION FOR
19 DAMAGES EQUAL TO TWO TIMES THE AMOUNT OF THE FEES ASSESSED AS PART OF THE
20 MOTOR VEHICLE'S TOWING AND STORAGE.

21 L. A PRIVATE TOWING CARRIER MAY NOT REQUIRE IMMEDIATE PAYMENT AS A
22 CONDITION OF RELEASING A MOTOR VEHICLE.

23 ~~E.~~ M. This section ~~shall apply~~ APPLIES only to services performed
24 while a person is actually engaged in the activities of a private towing
25 carrier.

26 ~~F.~~ N. ~~The provisions of~~ This section ~~do~~ DOES not apply to
27 abandoned or junk vehicles disposed of pursuant to title 28, chapter 11.

28 O. A PERSON WHO VIOLATES THIS SECTION IS GUILTY OF A CLASS 2
29 MISDEMEANOR.

30 P. THIS SECTION DOES NOT APPLY TO AGREEMENTS ENTERED INTO BETWEEN
31 LAW ENFORCEMENT AGENCIES AND PRIVATE TOWING CARRIERS FOR LAW
32 ENFORCEMENT-INITIATED TOWING SERVICES.

33 ~~[Q. THIS SECTION SHALL BE ENFORCED BY A CITY'S OR TOWN'S LAW~~
34 ~~ENFORCEMENT AGENCY.]~~

35 ~~[R.] [Q.]~~ A PRIVATE TOWING CARRIER MAY NOT PAY OR AGREE TO PAY ~~[A~~
36 ~~PRIVATE PROPERTY]~~ ~~[AN]~~ OWNER OR AN AGENT OF ~~[A]~~ ~~[AN OWNER OF]~~ PRIVATE
37 PROPERTY ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED. ~~[A PRIVATE~~
38 ~~PROPERTY]~~ ~~[AN]~~ OWNER OR AN AGENT OF ~~[A]~~ ~~[AN OWNER OF]~~ PRIVATE PROPERTY
39 ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED MAY NOT ACCEPT OR AGREE TO
40 ACCEPT ANY MONEY, FEES, COMMISSIONS, CREDITS, GIFTS, GRATUITIES OR OTHER
41 COMPENSATION FOR THE PROVIDED TOWING SERVICE.

42 ~~G.~~ ~~[S.] [R.]~~ For the purposes of this section, "private towing
43 carrier":

44 1. Means any person who commercially offers services to tow,
45 transport or impound motor vehicles from private property without the
46 permission of the owner or operator of the vehicle by use of a truck or
47 other vehicle designed for or adapted to that purpose

48 2. DOES NOT INCLUDE A MOTOR VEHICLE DEALERSHIP.

1 Sec. 2. Section 11-251.04, Arizona Revised Statutes, is amended to
2 read:

3 11-251.04. State preemption; rates for private towing
4 carrier; release of motor vehicle; damages;
5 applicability; definition

6 ~~A. Except as provided in subsection B of this section, the board of~~
7 ~~supervisors may regulate the maximum rate and charge for towing,~~
8 ~~transporting or impounding a motor vehicle from private property without~~
9 ~~the permission of the owner or operator of the vehicle by any private~~
10 ~~towing carriers doing business within the boundaries of the county.~~
11 ~~A private towing carrier is subject to the maximum rate and charge~~
12 ~~regulation prescribed by the board of supervisors for all such towing,~~
13 ~~transporting or impounding services if the vehicle being towed or~~
14 ~~transported is towed from private property located on property that lies~~
15 ~~within the boundaries of the county.~~

16 ~~B. The provisions of Subsection A of this section shall not apply~~
17 ~~to the towing, transporting or impounding of a motor vehicle from private~~
18 ~~property without the permission of the owner or operator of the vehicle by~~
19 ~~a private towing carrier where the vehicle being towed or transported is~~
20 ~~towed or transported from property that lies within the boundaries of an~~
21 ~~incorporated city or town that has regulated such towing, transporting or~~
22 ~~impounding pursuant to section 9-499.05.~~

23 A. THE REGULATION OF TOWING RATES FOR MOTOR VEHICLES THAT ARE TOWED
24 FROM PRIVATE PROPERTY BY PRIVATE TOWING CARRIERS PURSUANT TO THIS SECTION
25 IS A MATTER OF STATEWIDE CONCERN. THE REGULATION OF TOWING RATES FOR
26 MOTOR VEHICLES THAT ARE TOWED BY PRIVATE TOWING CARRIERS PURSUANT TO THIS
27 SECTION IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY, CITY, TOWN OR
28 OTHER POLITICAL SUBDIVISION OF THIS STATE.

29 B. FOR A COUNTY THAT DOES NOT REGULATE THE RATE FOR PRIVATE TOWING
30 MOTOR VEHICLES FROM PRIVATE PROPERTY AS OF JANUARY 1, 2026, THE RATE FOR
31 TOWING, TRANSPORTING, IMPOUNDING OR STORING A MOTOR VEHICLE THAT IS TOWED
32 FROM PRIVATE PROPERTY SHALL BE THE RATE PUBLISHED IN THE DEPARTMENT OF
33 PUBLIC SAFETY TOW SERVICE AGREEMENT FOR THE LOCATION FROM WHICH THE MOTOR
34 VEHICLE WAS TOWED.

35 C. ON OR BEFORE ~~[JANUARY]~~ [JULY] 1, 2027, A COUNTY THAT HAS, AS OF
36 JANUARY 1, 2026, REGULATED THE RATE FOR PRIVATE TOWING ~~[OF]~~ MOTOR VEHICLES
37 FROM PRIVATE PROPERTY SHALL UPDATE THE RATES FOR PRIVATE TOWING ~~[OF MOTOR~~
38 VEHICLES] FROM PRIVATE PROPERTY TO THE MARKET STANDARDS OR THE RATES AND
39 FEES PRESCRIBED BY THIS SECTION.

40 ~~C.~~ D. It is unlawful for a private towing carrier to tow or
41 transport a motor vehicle from private property without the permission of
42 the owner or operator of the motor vehicle unless ~~such~~ THE private towing
43 carrier receives a request from a law enforcement agency or the express
44 written permission from the owner or the agent of the owner of the
45 property. The owner or ~~his~~ THE OWNER'S agent shall either sign each
46 towing order or authorize the tow by a written contract ~~which~~ THAT is
47 valid for a specific length of time. The private towing carrier may not
48 act as the agent of the owner.

1 ~~D. A person who violates subsection C is guilty of a class 2~~
2 ~~misdemeanor.~~

3 E. A PRIVATE TOWING CARRIER SHALL RELEASE AN IMPOUNDED MOTOR
4 VEHICLE TO THE OWNER OF RECORD OR THE OWNER'S AGENT WHO PAYS, OR MAKES
5 ARRANGEMENTS TO PAY, THE CHARGES PRESCRIBED PURSUANT TO SUBSECTION B OF
6 THIS SECTION IN A MANNER CONSISTENT WITH THE DEPARTMENT OF PUBLIC SAFETY
7 TOW SERVICE AGREEMENT AND WHO PROVES OWNERSHIP OF THE MOTOR VEHICLE BY
8 PROVIDING A GOVERNMENT-ISSUED PHOTO IDENTIFICATION AND ONE OF THE
9 FOLLOWING:

- 10 1. A VALID CERTIFICATE OF TITLE.
- 11 2. PROOF OF A CURRENT VEHICLE REGISTRATION THAT IS NOT A RESTRICTED
- 12 USE THREE-DAY PERMIT.
- 13 3. A REPOSSESSION AFFIDAVIT AND A HOLD HARMLESS LIABILITY RELEASE
- 14 FROM LEGAL CLAIMS.
- 15 4. AN INSURANCE COMPANY RELEASE PURSUANT TO SECTION 28-4847.
- 16 5. A CERTIFIED VEHICLE RECORD.
- 17 6. PROOF OF A BONA FIDE SECURITY INTEREST OR OTHER FINANCIAL
- 18 INTEREST IN THE MOTOR VEHICLE THAT EXISTS AT THE TIME OF THE MOTOR VEHICLE
- 19 TOW.

- 20 7. PROOF OF A LIEN ON THE MOTOR VEHICLE, IF APPLICABLE.

21 F. THE PRIVATE TOWING CARRIER SHALL PROVIDE THE MOTOR VEHICLE OWNER
22 WITH AN ITEMIZED RECEIPT FOR SERVICES AND, ON REQUEST, SHALL PROVIDE A
23 COPY OF THIS STATUTE TO THE MOTOR VEHICLE OWNER OR OWNER'S AGENT WHO
24 RECLAIMS THE MOTOR VEHICLE.

25 G. A PRIVATE TOWING CARRIER THAT CHARGES A TOWING FEE GREATER THAN
26 THE TOWING FEE THAT IS PRESCRIBED PURSUANT TO SUBSECTION B OF THIS SECTION
27 MAY BE ORDERED TO REIMBURSE THE MOTOR VEHICLE OWNER OF ANY OVERCHARGES OR
28 UNAUTHORIZED CHARGES.

29 H. A PRIVATE TOWING CARRIER MAY NOT REQUIRE IMMEDIATE PAYMENT AS A
30 CONDITION OF RELEASING A MOTOR VEHICLE.

31 I. A PRIVATE TOWING CARRIER OR PRIVATE PARKING FACILITY OWNER THAT
32 INTENTIONALLY, KNOWINGLY OR RECKLESSLY VIOLATES THIS SECTION IS LIABLE TO
33 THE OWNER OF THE MOTOR VEHICLE THAT IS THE SUBJECT OF THE VIOLATION FOR
34 DAMAGES EQUAL TO TWO TIMES THE AMOUNT OF THE FEES ASSESSED AS PART OF THE
35 MOTOR VEHICLE'S TOWING AND STORAGE.

36 ~~[J. THIS SECTION SHALL BE ENFORCED BY A COUNTY'S LAW ENFORCEMENT~~
37 ~~AGENCY.]~~

38 ~~[K.] [J.]~~ A PRIVATE TOWING CARRIER MAY NOT PAY OR AGREE TO PAY ~~[A~~
39 ~~PRIVATE PROPERTY]~~ ~~[AN]~~ OWNER OR AN AGENT OF ~~[A]~~ ~~[AN OWNER OF]~~ PRIVATE
40 PROPERTY ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED. ~~[A PRIVATE~~
41 ~~PROPERTY]~~ ~~[AN]~~ OWNER OR AN AGENT OF ~~[A]~~ ~~[AN OWNER OF]~~ PRIVATE PROPERTY
42 ~~[OWNER]~~ FROM WHICH A MOTOR VEHICLE IS TOWED MAY NOT ACCEPT OR AGREE TO
43 ACCEPT ANY MONEY, FEES, COMMISSIONS, CREDITS, GIFTS, GRATUITIES OR OTHER
44 COMPENSATION FOR THE PROVIDED TOWING SERVICE.

45 ~~E. [L.] [K.]~~ This section ~~shall apply~~ APPLIES only to services
46 performed while a person is actually engaged in the activities of a
47 private towing carrier.

1 ~~F.~~ ~~[M.]~~ ~~[L.]~~ For the purposes of this section, "private towing
2 carrier" means any person who commercially offers services to tow,
3 transport or impound motor vehicles from private property without the
4 permission of the owner or operator of the vehicle by use of a truck or
5 other vehicle designed for or adapted to that purpose.

6 Sec. 3. Heavy-duty truck towing study committee; membership;
7 duties; report; delayed repeal

8 A. The heavy-duty truck towing study committee is established and
9 consists of the following members:

10 1. One member of the house of representatives who is appointed by
11 the speaker of the house of representatives.

12 2. One member of the senate who is appointed by the president of
13 the senate.

14 3. Two members who represent the private towing industry, one who
15 is appointed by the speaker of the house of representatives and one who is
16 appointed by the president of the senate.

17 4. Two members who represent the trucking industry, one who is
18 appointed by the speaker of the house of representatives and one who is
19 appointed by the president of the senate.

20 5. One member who represents the department of public safety and
21 who is appointed by the governor.

22 B. The members of the board shall elect a chairperson and vice
23 chairperson.

24 C. The study committee shall:

25 1. Review the current practices that are related to towing vehicles
26 that weigh twenty-six thousand pounds or more.

27 2. Review cargo release practices.

28 3. Review heavy-duty truck towing enforcement issues.

29 4. Evaluate the minimum towing insurance requirements.

30 5. Discuss establishing a state towing board and potential state
31 towing board duties.

32 D. On or before June 30, 2027, the committee shall submit a report
33 regarding the committee's activities and recommendations to the governor,
34 the president of the senate and the speaker of the house of
35 representatives and shall provide a copy of the report to the secretary of
36 state.

37 E. This section is repealed from and after December 31, 2027.

38 <<Sec. 4. Department of public safety; towing compliance
39 unit; report; recommendations

40 [A. On or before December 31, 2026, the department of public safety
41 shall submit a report to the president of the senate and the speaker of
42 the house of representatives on establishing and administering a towing
43 compliance and enforcement unit within the department of public safety to
44 regulate private towing carriers in this state. The report must include
45 all of the following:

46 1. The ability of a towing and compliance enforcement unit to do
47 all of the following:

48 (a) Investigate complaints involving private towing carriers.

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- 1 (b) Enforce applicable private towing carrier rates.
2 (c) Enforce compliance with state private towing carrier laws and
3 rules.
4 (d) Investigate and take enforcement action against excessive,
5 fraudulent, deceptive or predatory private towing carrier practices.
6 (e) Conduct audits and investigations of private towing carriers
7 that perform private towing on receiving a complaint, on finding a pattern
8 of violation of private towing laws in this state or on the referral from
9 a law enforcement agency.
10 2. A proposed budget and recommendations for the appropriation of
11 monies or the assessment and use of private towing fees for a towing and
12 compliance enforcement unit.
13 B. The department of public safety shall submit to the joint
14 legislative budget committee for review the proposed budget
15 recommendations for the appropriation of monies or the assessment and use
16 of private towing fees for a towing and compliance enforcement unit.]]>>

17 Enroll and engross to conform
18 Amend title to conform

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